

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

SECOND SECTION

CASE OF PUZANOV AND OTHERS v. RUSSIA

(Applications nos. 3669/18 and 29 others –
see appended list)

JUDGMENT

STRASBOURG

11 May 2023

This judgment is final but it may be subject to editorial revision.



In the case of Puzanov and Others v. Russia,

The European Court of Human Rights (Second Section), sitting as a Committee composed of:

Lorraine Schembri Orland*, President*,
Frédéric Krenc,
Davor Derenčinović*, judges*,

and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 13 April 2023,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the disproportionate measures taken against them as participants or organisers of public assemblies. They also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. JURISDICTION

6. The Court observes that the facts giving rise to the alleged violations of the Convention occurred prior to 16 September 2022, the date on which the Russian Federation ceased to be a party to the Convention. The Court therefore decides that it has jurisdiction to examine the present applications (see *Fedotova and Others v. Russia* [GC], nos. 40792/10 and 2 others, §§ 68-73, 17 January 2023).

III. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

7. The applicants complained principally of disproportionate measures taken against them as participants or organisers of public assemblies, namely their arrest in relation to the dispersal of these assemblies and their conviction for administrative offences. They relied, expressly or in substance, on Article 11 of the Convention.

8. The Court refers to the principles established in its case-law regarding freedom of assembly (see *Kudrevičius and Others v. Lithuania* [GC], no. 37553/05, ECHR 2015, with further references) and proportionality of interference with it (see *Oya Ataman v. Turkey*, no. 74552/01, ECHR 2006-XIV, and *Hyde Park and Others v. Moldova*, no. 33482/06, 31 March 2009).

9. In the leading cases of *Frumkin v. Russia,* no. 74568/12, ECHR 2016 (extracts), *Navalnyy and Yashin v. Russia,* no. 76204/11, 4 December 2014 and *Kasparov and Others v. Russia,* no. 21613/07, 3 October 2013, the Court already found a violation in respect of issues similar to those in the present case.

10. Having examined all the material submitted to it, the Court has not found any fact or argument capable of persuading it to reach a different conclusion as to the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the interferences with the applicants' freedom of assembly were not "necessary in a democratic society".

11. These complaints are therefore admissible and disclose a breach of Article 11 of the Convention.

IV. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

12. Some applicants submitted other complaints which also raised issues under the Convention and Protocols thereto, given the relevant well-established case-law of the Court (see the appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible. Having examined all the material before it, the Court concludes that they also disclose violations of the Convention in the light of its findings in *Butkevich v. Russia*, no. 5865/07, §§ 63-64, 13 February 2018; *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 115-31, 10 April 2018; *Korneyeva v. Russia*, no. 72051/17, §§ 34-36, 8 October 2019; and *Teslenko and Others v. Russia*, nos. 49588/12 and 3 others, §§ 72-74 and 81-82, 5 April 2022, as to prompt administrative escorting to and/or detention in a police station beyond three hours for non-custodial offences, without substantiating the impossibility to

compile an offence report at a rally venue or any exceptional circumstances or another valid ground under the Code of Administrative Offences (CAO) or continued detention after the offence report was compiled; and *Karelin v. Russia*, no. 926/08, §§ 58-85, 20 September 2016, concerning the lack of a prosecuting party in criminal proceedings under the CAO.

V. REMAINING COMPLAINTS

13. In view of the findings in paragraphs 11 and 12 above, there is no need to examine the other aspects of the complaints raised by some applicants under Articles 5 and 6 of the Convention.

VI. APPLICATION OF ARTICLE 41 OF THE CONVENTION

14. Article 41 of the Convention provides:

> "If the Court finds that there has been a violation of the Convention or the Protocols thereto, and if the internal law of the High Contracting Party concerned allows only partial reparation to be made, the Court shall, if necessary, afford just satisfaction to the injured party."

15. Regard being had to the documents in its possession and to its case-law (see, in particular, *Navalnyy and Others v. Russia* [Committee], nos. 25809/17 and 14 others, § 22, 4 October 2022), the Court finds it reasonable to award the sums indicated in the appended table.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Holds* that it has jurisdiction to deal with these applications as they relate to facts that took place before 16 September 2022;

3. *Declares* the complaints under Article 11 of the Convention and the other complaints under well-established case-law of the Court, as set out in the appended table, admissible, and *decides* that it is not necessary to examine the other aspects of the complaints raised by some applicants under Articles 5 and 6 of the Convention;

4. *Holds* that there has been a violation of Article 11 of the Convention;

5. *Holds* that there has been a violation of the Convention as regards the other complaints raised under well-established case-law of the Court (see the appended table);

6. *Holds*

(a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;

(b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 11 May 2023, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina Acting Deputy Registrar	Lorraine Schembri Orland President

APPENDIX

List of applications raising complaints under Article 11 of the Convention
(disproportionate measures against organisers and participants of public assemblies)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
1.	3669/18 08/01/2018	**Aleksandr Viktorovich PUZANOV** 1995	Terekhov Konstantin Ilyich Moscow	Anticorruption rally St Petersburg, 12/06/2017	Article 19.3 § 1 of CAO Article 20.2 § 5 of CAO	fine of RUB 500 fine of RUB 3,000	St Petersburg City Court 13/07/2017	Art. 5 (1) - unlawful detention - on 12-13/06/2017 escorting to and detention in a police station for and after compiling offence reports, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings – under Article 20.2 § 5 of CAO	4,000
2.	3670/18 08/01/2018	**Kirill Vyacheslavovich NIKITIN** 1998	Terekhov Konstantin Ilyich Moscow	Anticorruption rally St Petersburg, 12/06/2017	Article 19.3 § 1 of CAO Article 20.2 § 5 of CAO	fine of RUB 500 fine of RUB 10,000	St Petersburg City Court 13/07/2017	Art. 5 (1) - unlawful detention - on 12-13/06/2017 escorting to and detention in a police station for and after compiling offence reports, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings – under Article 20.2 § 5 of CAO	4,000

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3.	3690/18 08/01/2018	**German Aleksandrovich GORELIK** 1967	Terekhov Konstantin Ilyich Moscow	Anticorruption rally St Petersburg, 12/06/2017	Article 19.3 § 1 of CAO Article 20.2 § 5 of CAO	fine of RUB 500 fine of RUB 10,000	St Petersburg City Court 13/07/2017	Art. 5 (1) - unlawful detention - on 12-14/06/2017 escorting to and detention in a police station for and after compiling offence reports, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings – under Article 20.2 § 5 of CAO	4,000
4.	4025/18 08/01/2018	**Sergey Leonidovich PODUSHKOV** 1965	Terekhov Konstantin Ilyich Moscow	Anticorruption rally St Petersburg, 12/06/2017	Article 19.3 § 1 of CAO Article 20.2 § 5 of CAO	fine of RUB 500 fine of RUB 3,000	St Petersburg City Court 20/07/2017	Art. 5 (1) - unlawful detention - on 12-14/06/2017 escorting to and detention in a police station for and after compiling offence reports, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings – under Article 20.2 § 5 of CAO	4,000
5.	4028/18 08/01/2018	**Ivan Ivanovich DRAGOMILOV** 1990	Terekhov Konstantin Ilyich Moscow	Anticorruption rally St Petersburg, 12/06/2017	Article 19.3 § 1 of CAO Article 20.2 § 5 of CAO	fine of RUB 500 fine of RUB 10,000	St Petersburg City Court 27/07/2017	Art. 5 (1) - unlawful detention - on 12-14/06/2017 escorting to and detention in a police station for and after compiling offence reports, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings – under Article 20.2 § 5 of CAO	4,000
6.	4820/18 12/01/2018	**Vladimir Aleksandrovich FEDIN** 1990	Terekhov Konstantin Ilyich Moscow	Anticorruption rally St Petersburg, 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	St Petersburg City Court 13/07/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500

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7.	4904/18 17/01/2018	**Artem Valeryevich SOLOMKIN** 1990	Terekhov Konstantin Ilyich Moscow	Anticorruption rally St Petersburg, 12/06/2017	Article 19.3 § 1 of CAO Article 20.2 § 5 of CAO	fine of RUB 1,000 fine of RUB 10,000	St Petersburg City Court 18/07/2017	Art. 5 (1) - unlawful detention - on 12-13/06/2017 escorting to and detention in a police station for and after compiling offence reports, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings – under Article 20.2 § 5 of CAO	4,000
8.	5277/18 08/01/2018	**Yevgeniy Aleksandrovich PYRYAYEV** 1945	Terekhov Konstantin Ilyich Moscow	Anticorruption rally St Petersburg, 12/06/2017	Article 19.3 § 1 of CAO Article 20.2 § 5 of CAO	fine of RUB 500 fine of RUB 10,000	St Petersburg City Court 11/07/2017	Art. 5 (1) - unlawful detention - on 12-13/06/2017 escorting to and detention in a police station for compiling offence reports, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings – under Article 20.2 § 5 of CAO	4,000
9.	6428/18 10/01/2018	**Artem Valentinovich MISHCHENKO** 1995	Zhdanov Ivan Yuryevich Vilnius	Anticorruption rally St Petersburg, 12/06/2017	Article 19.3 § 1 of CAO Article 20.2 § 5 of CAO	fine of RUB 500 fine of RUB 10,000	St Petersburg City Court 11/07/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings – under Article 20.2 § 5 of CAO	3,500
10.	7226/18 10/01/2018	**Svetlana Ivanovna SAKHAROVA** 1966	Zhdanov Ivan Yuryevich Vilnius	Anticorruption rally St Petersburg, 12/06/2017	Article 19.3 § 1 of CAO Article 20.2 § 5 of CAO	fine of RUB 1,000 fine of RUB 10,000	St Petersburg City Court 11/07/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings – under Article 20.2 § 5 of CAO	3,500

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11.	7571/18 12/01/2018	**Yuliya Igorevna SAVELYEVA** 1994	Peredruk Aleksandr Dmitriyevich St Petersburg	Anticorruption rally St Petersburg, 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	St Petersburg City Court 13/07/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500
12.	7628/18 10/01/2018	**Kirill Alekseyevich KHROMOV** 1989	Zhdanov Ivan Yuryevich Vilnius	Anticorruption rally St Petersburg, 12/06/2017	Article 19.3 § 1 of CAO Article 20.2 § 5 of CAO	fine of RUB 500 fine of RUB 5,000	St Petersburg City Court 11/07/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings – under Article 20.2 § 5 of CAO	3,500
13.	7748/18 10/01/2018	**Dmitriy Vladimirovich MALYUGA** 1993	Zhdanov Ivan Yuryevich Vilnius	Anticorruption rally St Petersburg, 12/06/2017	Article 19.3 § 1 of CAO Article 20.2 § 5 of CAO	fine of RUB 1,000 fine of RUB 10,000	St Petersburg City Court 11/07/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings – under Article 20.2 § 5 of CAO	3,500
14.	8177/18 09/01/2018	**Yuriy Mikhaylovich VASILYEV** 1996	Peredruk Aleksandr Dmitriyevich St Petersburg	Anticorruption rally St Petersburg, 12/06/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	St Petersburg City Court 11/07/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500
15.	29140/18 07/06/2018	**Vladimir Viktorovich SYTNIK** 1967	Zhdanov Ivan Yuryevich Vilnius	Anticorruption rally Rostov-on-Don, 07/10/2018	Article 20.2 § 6.1 of CAO	3 days of detention	Rostov Regional Court 07/12/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	5,000

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16.	52988/18 26/10/2018	**Eleonora Sergeyevna TERESHONOK** 1995	Peredruk Aleksandr Dmitriyevich St Petersburg	Opposition rally St Petersburg, 05/05/2018	Article 19.3 § 1 of CAO Article 20.2 § 5 of CAO	fine of RUB 500 fine of RUB 10,000	St Petersburg City Court 26/06/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings – under Article 20.2 § 5 of CAO	3,500
17.	6679/19 21/01/2019	**Anton Olegovich METELEV** 1991	Zhdanov Ivan Yuryevich Vilnius	Opposition rally Kirov, 05/05/2018	Article 20.2 § 5 of CAO	fine of RUB 10,000	Kirov Regional Court 07/08/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500
18.	7628/19 21/01/2019	**Natalya Nikolayevna KUPRIYANOVA** 1999	Zhdanov Ivan Yuryevich Vilnius	Opposition rally Saratov, 05/05/2018	Article 20.2 § 5 of CAO	fine of RUB 10,000	Saratov Regional Court 04/09/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500
19.	7885/19 23/01/2019	**Dmitriy Aleksandrovich VASILYEV** 1980	Zhdanov Ivan Yuryevich Vilnius	Rally against the pension reform St Petersburg, 09/09/2018	Article 20.2 § 6.1 of CAO	6 days of detention	St Petersburg City Court 02/10/2018	Art. 5 (1) - unlawful detention - on 09-10/09/2018 detention in a police station after compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	5,000
20.	7915/19 23/01/2019	**Dmitriy Igorevich PAVLOV** 1998	Peredruk Aleksandr Dmitriyevich St Petersburg	Rally against the pension reform St Petersburg, 09/09/2018	Article 20.2 § 6.1 of CAO	fine of RUB 10,000	St Petersburg City Court 08/11/2018	Art. 5 (1) - unlawful detention - on 09-11/09/2018 escorting to and detention in a police station for and after compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000

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21.	7921/19 23/01/2019	**Daniil Yaroslavovich FARADEY** 1995	Peredruk Aleksandr Dmitriyevich St Petersburg	Rally against the pension reform St Petersburg, 09/09/2018	Article 20.2 § 6.1 of CAO	fine of RUB 10,000	St Petersburg City Court 08/11/2018	Art. 5 (1) - unlawful detention - on 09-11/09/2018 escorting to and detention in a police station for and after compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
22.	8052/19 26/01/2019	**Richard Richardovich ROUZ** 1985	Zboroshenko Nikolay Sergeyevich Mytishchi	Opposition rally Kirov, 05/05/2018	Article 20.2 § 2 of CAO	fine of RUB 20,000	Kirov Regional Court 18/09/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500
23.	8150/19 19/01/2019	**Marat Faradovich SHABANOV** 1984	Peredruk Aleksandr Dmitriyevich St Petersburg	Rally against the pension reform St Petersburg, 09/09/2018	Article 20.2 § 6.1 of CAO	fine of RUB 10,000	St Petersburg City Court 02/10/2018	Art. 5 (1) - unlawful detention - on 09-10/09/2018 escorting to and detention in a police station for compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
24.	8244/19 21/01/2019	**Mariya Dmitriyevna SIROTKINA** 1993	Zhdanov Ivan Yuryevich Vilnius	Opposition rally St Petersburg, 05/05/2018	Article 20.2 § 5 of CAO	fine of RUB 10,000	St Petersburg City Court 31/07/2018		3,500

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25.	8421/19 01/02/2019	**Pavel Sergeyevich TUMENBAYEV** 1988	Zhdanov Ivan Yuryevich Vilnius	Rally against the pension reform St Petersburg, 09/09/2018	Article 20.2 § 6.1 of CAO	fine of RUB 15,000	St Petersburg City Court 09/10/2018	Art. 5 (1) - unlawful detention - on 09-10/09/2018 detention in a police station after compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
26.	8929/19 19/01/2019	**Daniil Alekseyevich TROITSKIY** 1998	Peredruk Aleksandr Dmitriyevich St Petersburg	Rally against the pension reform St Petersburg, 09/09/2018	Article 20.2 § 6.1 of CAO	40 hours of community work	St Petersburg City Court 02/10/2018	Art. 5 (1) - unlawful detention - on 09-11/09/2018 escorting to and detention in a police station for and after compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
27.	8998/19 22/01/2019	**Yevgeniy Borisovich KASHPIREV** 1993	Yesipova Alina Vladimirovna St Petersburg	Rally against the pension reform St Petersburg, 09/09/2018	Article 20.2 § 6.1 of CAO	10 days of detention	St Petersburg City Court 24/09/2018	Art. 5 (1) - unlawful detention - on 09-11/09/2018 escorting to and detention in a police station for and after compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	5,000
28.	15248/19 11/03/2019	**Aleksandr Leonidovich KASATKIN** 1992	Pomazuyev Aleksandr Yevgenyevich Vilnius	Rally against the pension reform St Petersburg, 09/09/2018	Article 20.2 § 6.1 of CAO	fine of RUB 15,000	St Petersburg City Court 16/10/2018	Art. 5 (1) - unlawful detention - on 9-10/09/2018 detention in a police station for and after compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000

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29.	16142/19 07/03/2019	**Yevgeniya Eduardovna LITVINOVA** 1960	Peredruk Aleksandr Dmitriyevich St Petersburg	Event against the pension reform St Petersburg, 07/09/2018	Article 20.2 § 5 of CAO	fine of RUB 10,000	St Petersburg City Court 18/10/2018	Art. 5 (1) - unlawful detention - on 26-27/09/2018 escorting to and detention in a police station for and after compiling an offence report in relation to the event on 07/09/2018, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
30.	24478/19 30/04/2019	**Eduard Viktorovich SHITIK** 1961	Peredruk Aleksandr Dmitriyevich St Petersburg	Event against the pension reform St Petersburg, 07/09/2018	Article 20.2 § 5 of CAO	fine of RUB 10,000	St Petersburg City Court 21/02/2019	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500

[1] Plus any tax that may be chargeable to the applicants.